

OPOAM 3013.501(a)(1)(ii)
Sole Source Justification (SSJ)
FAR subpart 13.5, including Brand Name Template

SSJ No.: FY25-097

Date: 3/20/2025

PR Number: 70RFP125RE2000007

Pursuant to the requirements at 41 U.S.C. 1901 or the authority of 41 U.S.C. 1903 Special emergency authority as implemented by Federal Acquisition Regulation (FAR) subpart 13.5 and consistent with the content requirements of FAR 6.303-2.

1. Agency and Contracting Activity. Identification of the agency and the contracting activity, and specific identification of the document as a “sole source justification.”

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), Federal Protective Service (FPS), Acquisition Division (AD) proposes to extend the performance period of Contract 70RFP119DE2000003, with Michael Stapleton Associates (MSA), Ltd., for Explosive Detection Canine Team (EDCT) services federal facilities in New York City, Borough of Manhattan on the basis of other than full and open competition.

2. Nature and/or description of the action being approved.

FPS intends to procure Explosive Detection Canine Team (EDCT) services on a noncompetitive basis for up to six (6) months, April 01, 2025 – September 30, 2025, to allow time to finalize award of the competitive follow-on contract and provide adequate time for transition. This action will result in a modification to extend the ordering period of the current contract to allow placement of a task order to continue critical EDCT services in New York City, Borough of Manhattan. The task order will only be issued under this contract for the necessary length of time required, but not to exceed six (6) months. The current contract is set to expire on March 31, 2025. Unanticipated delays have necessitated the need for a sole source extension to maintain uninterrupted services. CCG did not receive a procurement package for the recompetes from the Program Office until January 10, 2025 for a contract expiring March 31, 2025, leaving insufficient time to conduct market research, solicit, evaluate proposals, make award, and provide adequate transition time to the awardee (typically 120 days). Additionally, the inclusion of a Top Secret facility clearance level for ODNI in Bethesda, MD, which has since been downgraded to Secret, further complicated the timeline and procurement efforts. These factors have resulted in the need for an extension to ensure continued service delivery while addressing these delays.

FPS AD will be utilizing unrestricted/full and open contract vehicle for Explosive Detection Canine Team services, with approval from the Office of Small and Disadvantaged Business Utilization (OSDBU). The estimated start date of follow-on contract is October 1, 2025. This follow-on effort will also require a transition period of up to 120-days from the date of award to the performance start date. As such, this extension will allow time to complete the award and provide an adequate transition period to the new effort for this requirement.

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(a) Name and address of the contractor.

Michael Stapleton Associates, Ltd.
[REDACTED]

(b) Contract type: Indefinite Delivery Indefinite Quantity, Firm Fixed Price

(c) Estimated total value: Six months - [REDACTED]



(d) Type of funding: Operations and support funds

(e) Year of funding: Fiscal Year 2025

(f) Solicitation number: Not Applicable

(g) Background information about the requirement: FPS AD intends to obtain services pursuant to 41 U.S.C. 1901, as implemented by FAR subpart 13.5 Simplified Procedures for Certain Commercial Products and Commercial Services for the continuation of EDCT services in New York City, Borough of Manhattan.

3. Description of Supplies/Services. Describe the supplies or services to be acquired. Provide the estimated total value (including options, if any).

The requirement is to provide Explosive Detection Canine Team services at various federal facilities in New York City, Borough of Manhattan. Michael Stapleton Associates, Ltd. is currently performing under a six (6) month extension pursuant to FAR 52.217-8, period (October 1, 2024 through March 31, 2025) of the competitively awarded contract 70RFP119DE2000003. Services will end under this contract on March 31, 2025. To complete the competitive procurement process and provide a transition period for the new follow-on contract, FPS AD finds it necessary to request approval for up to an additional six (6) months of service under the authority for other than full and open competition cited herein. This will extend the ordering period under contract 70RFP119DE2000003 from April 1, 2025 through September 30, 2025 in the event all six months are needed.

The instant action is to allow FPS to continue procuring EDCT services from Michael Stapleton Associates, Ltd. under contract 70RFP119DE2000003 while processing the evaluation and award of the competitive follow-on contract to include the transition period. This will ensure

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uninterrupted security services at federal facilities in Manhattan, NY between the expiration of the existing contract and the start of full performance by the successful vendor under the follow-on effort. The proposed sole source extension will ensure services are provided while the award is being finalized and will also cover the 120-day transition for the new vendor to train and meet all requirements of the contract prior to the K9 handlers standing post. The requirement fulfills an existing government need and the extension of the existing contract is the most advantageous and only practical method of fulfilling the government's need, price, and other factors considered. This contract extension also takes into account the Government's need for continuity of operations and potential costs of disrupting operations. The period of performance for this extension is for up to six (6) months of additional EDCT services from April 1, 2025 through September 30, 2025; at an approximate value of [REDACTED]

4. Identification of the authority.

41 U.S.C. 1901, as implemented by FAR subpart 13.5 Simplified Procedures for Certain Commercial Products and Commercial Services.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Michael Stapleton Associates, Ltd. is currently satisfactorily performing EDCT services under contract 70RFP119DE2000003 at federal facilities in Manhattan, NY. The contract is set to expire on March 31, 2025. FPS AD anticipates the award of a task order under a follow-on contract on or before June 1, 2025, which will be solicited under Request for Proposal (RFP) 70RFP125RE2000007. The FPS regional and zonal offices experienced unexpected delays with the Procurement Request Package which included the addition of ODNI an additional Top Secret requirement in Bethesda, MD coupled with the lead COR's competing work demands. FPS AD will be using an unrestricted/full and open contract vehicle for the Explosive Detection Canine Team services follow-on contract.

With the incumbent contract set to expire on March 31, 2025, the intended extension through September 30, 2025 will ensure uninterrupted security services at federal facilities in Manhattan, NY between the expiration of the existing contract and the start of full performance by the successful vendor under the follow-on effort.

The follow-on requirement under this contract is estimated to be awarded on or before June 1, 2025, with an anticipated performance start date on October 1, 2025. The follow-on contract will have a transition period of 120-days from the date of award to the performance start date. This transition period enables the follow-on contractor to obtain all necessary equipment, licensing, training, security clearances and other requirements for its employees to be able to begin standing post at the start of performance. Due to screenings, training, licensing, and transition requirements for K9 handlers under the FPS program, another K9 company cannot immediately replace the existing contractor without a severe and unacceptable degradation in overall security jeopardizing federal government personnel, visitors, and assets. For these reasons, it is also not feasible for any portion of the work to be segregated to allow for competition. The incumbent contractor, Michael Stapleton Associates, Ltd., is familiar with

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the instant requirement, facility locations, and has a fully qualified staff in place and is the only contractor at this time that can immediately fulfill the requirement without delay or interruption of services. As a result, a short-term extension of services under the current contract is necessary to ensure a seamless transition takes place from the existing requirement to the follow-on effort.

Title 40 United States Code (U.S.C) §1315 gives DHS the responsibility to protect federal facilities and the people therein. Presidential Policy Directive 21 (PPD-21), and the National Infrastructure Protection Plan (NIPP) further refine DHS's responsibility to protect buildings, grounds, and property that are owned, occupied, or secured by the Federal Government. These documents also establish U.S. policy for the protection and resilience of the nation's critical infrastructure and provide a framework for integrating efforts designed to enhance the safety of critical infrastructure. Given the reality of terrorist threats, it is in the best interests of DHS and the public to continue to allow the incumbent contractor to provide services until the follow-on contract is appropriately transitioned. Effective EDCT services are integral to the FPS mission to respond to terrorist attacks, domestic workplace violence, trespassing, disorderly conduct, and emergency medical situations. EDCT services also mitigate threats by detecting explosives, harmful chemicals and suspicious packages at these locations. Due to these critical roles, a modification to extend the current contract 70RFP119DE2000003 with Michael Stapleton Associates, Ltd. is required to allow placement of a new contract to provide continued services to ensure uninterrupted service, a seamless transition, and to eliminate potential disruption in EDCT services.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

The circumstance restricting competition for this requirement is that "only one responsible source and no other supplies or services will satisfy agency requirements," pursuant to FAR 6.302-1. Therefore, no exception to the FAR 5.2 notification requirement applies, and FPS AD will synopsise this requirement to SAM.gov once OPO approves the ADFO Memorandum which has been in their receipt since March 14, 2025, which is pursuant to FAR 5.201(b)(1)(ii). FPS AD intends to make this justification publicly available pursuant to FAR 6.305.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable. (Use information such as commercial pricelists or prior acquisition history that will help the Contracting Officer determine the anticipated cost is fair and reasonable or discuss the application of any of the techniques described at FAR 13.106-3(a)(2) and/or 13.106-3(b)(3)).

The Contracting Officer has determined that the flat monthly rate of [REDACTED] is fair, reasonable and unchanged from the current contract rate, and is consistent with historical prices paid for the same or similar items in accordance with FAR 15.404-1(b)(2)(ii). Michael Stapleton Associates, Ltd. agreed to honor the current contract flat monthly rate of [REDACTED] which is the rate provided under the current contract 70RFP119DE2000003

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expiring on March 31, 2025, for the period of performance from April 1, 2025 through September 30, 2025, which will be modified into the contract under modification P00010.

In accordance with FAR 15.403-1(b)(3), no certified cost or pricing data will be required because the service is commercially available to the general public.

8. Description of market research.

The agency has conducted market research for the new requirement and is familiar with the other potential sources and their qualifications. Based on our market research, other companies could provide EDCT services at federal facilities in New York City, Borough of Manhattan, however they could not do so by April 1, 2025, causing unacceptable delays or potentially jeopardizing the safety of government employees or visitors. Accordingly, no other contractor can provide the services without an unacceptable interruption in service at this time.

9. Any other facts supporting the justification. (You must explain why technical data packages, specifications, statements of work, or purchase descriptions are not suitable for enhancing competition or not available. Discuss why your requirement cannot be modified to increase competition. If you are contending only one source can meet the Government's minimum need, you must document the reason why and describe the extent to which the Government will be harmed if not acquired from that vendor. Address any potential duplication of cost, if applicable.)

Since it is essential that service continue without interruption for the security of the facilities, its tenants, its visitors, and the fact that Michael Stapleton Associates, Ltd. is performing satisfactorily as documented under the Contractor Performance Evaluation Assessment Report System (CPARS), it is in the best interest of the government to extend contract 70RFP119DE2000003 for up to six (6) months with the current contractor.

10. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

Not applicable.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

This requirement is for the sole purpose of issuing a modification to continue EDCT services under Contract 70RFP119DE2000003 until the competitive follow-on contract is awarded and transitioned to start. The agency is currently processing a follow-on requirement which is taking longer than originally projected due to unanticipated issues. The agency plans to make award no later than June 1, 2025, with the new award to start no later than October 1, 2025. It is essential that services continue without interruption for the security of federal facilities in New York City, Borough of Manhattan to include government personnel and visitors at these locations.

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